

THIRD-PARTY CONTRACT DOCUMENTATION

Montreal Convention — Consequential Loss Assessment

Case reference:	DEF-2026-EW-0089
Claimant:	Daniel Hartley
Flight:	HC 1184 — London Luton (LTN) to Barcelona El Prat (BCN)
Date of disruption:	14 March 2026
Document type:	Third-party contract — consequential loss evidence
Prepared by:	Documentation Intelligence Officer — England & Wales
Date filed:	14 June 2026

1. BACKGROUND AND PURPOSE

This document has been prepared in connection with the consequential loss claim advanced by Daniel Hartley (the "Claimant") arising from the diversion of flight HC 1184 on 14 March 2026. The Claimant alleges consequential commercial loss in the sum of £38,250 pursuant to the Montreal Convention 1999 (as incorporated into United Kingdom law by the Carriage by Air Acts (Implementation of the Montreal Convention 1999) Order 2002).

2. DOCUMENTS REVIEWED

The following third-party contract documentation has been obtained and reviewed in connection with the Claimant's consequential loss allegation:

- (a) Consultancy agreement between Daniel Hartley trading as DH Consulting and Meridian Technologies SL, dated 1 February 2026
- (b) Purchase order PO-2026-0341 issued by Meridian Technologies SL, dated 8 March 2026, specifying delivery of consultancy services
- (c) Email correspondence between D. Hartley and M. García (Meridian Technologies SL), 14-17 March 2026, including notice of non-performance
- (d) Invoice MT-INV-2026-0089 issued by Meridian Technologies SL dated 20 March 2026 in the sum of €45,000, purportedly representing consequential loss

3. ASSESSMENT — CAUSATION AND FORESEEABILITY

The Montreal Convention does not create strict liability for all consequential loss flowing from a delay or cancellation. Article 19 liability requires that the carrier failed to take all measures reasonably necessary to avoid the damage, or that it was impossible to take such measures. The following observations are made:

- 3.1 The Contract does not contain a force majeure clause specifying aviation delay as a trigger event. The absence of such provision does not automatically engage the Carrier's liability under the Montreal Convention.
- 3.2 The invoice (MT-INV-2026-0089) represents the entirety of the alleged loss. However, the contractual terms do not include a liquidated damages provision of this nature. The invoice appears to have been generated in anticipation of the claim rather than pursuant to contractual obligation.
- 3.3 The Claimant took the first available alternative transport (coach transfer arriving Barcelona approximately 18:45). The question of whether the Claimant took all reasonable steps to mitigate loss requires further examination.

3.4 The Montreal Convention does not provide recovery for speculative commercial losses where causation has not been established to the civil standard. The alleged loss of £38,250 requires independent expert verification of the contractual relationship, the genuine commercial loss sustained, and the steps taken to mitigate.

4. RECOMMENDATION

On the basis of the documentation reviewed, the consequential loss claim as currently presented does not meet the evidential threshold for recovery under the Montreal Convention. The Carrier should challenge causation and foreseeability, request independent expert assessment of the alleged loss, and invite the Claimant to provide audited financial records demonstrating the commercial loss actually sustained. The claimed sum of £38,250 is not supported by the contractual documentation produced.